

ORIGINAL

(S E R V E D )  
( MARCH 30, 1993 )  
(FEDERAL MARITIME COMMISSION)

**FEDERAL MARITIME COMMISSION**

**WASHINGTON, D.C.**

March 30, 1993

**DOCKET NO. 89-26**

**THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.**

**v.**

**SEA-LAND SERVICE, INC. AND  
AMERICAN PRESIDENT LINES, LTD.**

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**FURTHER SETTLEMENT DISCUSSIONS**

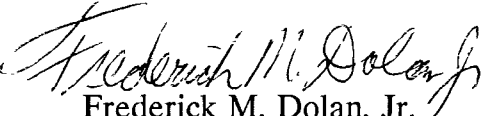
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The parties have agreed to further settlement discussions, this time before a neutral party, Mr. Gordon M. Shaw, retired, formerly an attorney on the staff of the Office of the General Counsel. Copies of the parties' Prehearing Memoranda dated March 26, 1993, are being made available to Mr. Shaw to acquaint him with the issues in this proceeding. A non-binding mediation session or sessions will be convened after Mr. Shaw<sup>1</sup> has had an opportunity to review the above material consisting of more than 200 pages.

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<sup>1</sup>Since Mr. Shaw is no longer employed by this agency the parties should agree to reimburse him for his expenses and to compensate him for his services. He can be reached at (202)293-3490.

The exact matters to be discussed can be decided later. The date, time and place of the session will be fixed by Mr. Shaw after consultation with the parties. The mediation session will remain confidential until all administrative and judicial appeals have been terminated. The hearing date of April 27, 1993, will remain fixed, barring unforeseen circumstances. Thus, the parties and Mr. Shaw should endeavor to complete the mediation and report the results by the close of business April 9, 1993.

  
Frederick M. Dolan, Jr.,  
Administrative Law Judge